



File No.: EXP202213463

RESOLUTION No.: R/00346/2023

Considering the complaint filed on October 26, 2022, before this Agency by Ms. A.A.A. against KUTXABANK, S.A. for not having properly attended to her right of access.

Having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant, on October 12, 2022, requested the respondent access to her data subject to processing, as well as a "detailed list of all entities, bodies, legal persons, natural persons, countries, or of any other kind, to which my personal data have been sent, that is, a comprehensive list of to whom my personal data have been sent, detailing date, reason, identification, and location."

On October 13, 2022, she received a response providing access to her data subject to processing and, on the other hand, regarding the recipients of her data, a generic response was provided indicating that "Kutxabank, S.A. may communicate your data to the Entities and Bodies detailed below:

Regulatory and supervisory authorities (e.g., Bank of Spain and European Central Bank). Group companies, and official authorities or bodies, including those from other countries, located inside or outside the European Union, in the context of the fight against the financing of terrorism and serious forms of organized crime and the prevention of money laundering. Risk Information Center of the Bank of Spain. Files related to the non-compliance with monetary obligations in case of such non-compliance. Financial Holdings File. Information Exchange Service for Fraud Prevention. Courts and State Security Forces and Bodies (...)."

Dissatisfied with the response, on October 13 and 24, 2022, she reiterated her request for access, emphasizing the request for a detailed list of the recipients to whom her data had been provided, receiving a response from the respondent on October 24, 2022, identical in nature to its first response. The complainant provides a copy of the access request and proof of its sending, as well as copies of the responses received.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission for processing of complaints filed before the AEPD, consisting of transferring them to the Data Protection Delegates designated by the controllers or processors of the data, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, it is

C/ Jorge Juan, 6

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28001 – Madrid

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2/7

the transfer of the claim to the entity being claimed against so that it could proceed with its analysis and respond to the claiming party and this Agency within a month.

The Data Protection Delegate states that, once the request from the claiming party was received, he responded by granting access to their data.

Following the receipt of a new request from the claiming party for a detailed list of all recipients of their data, "(...) without providing additional information that would allow the entity to clearly and concisely identify the subject of their request," the entity responded by referring to the fact that in the response provided to their first request, they were informed of both the categories of recipients in accordance with the provisions of Article 15.1.c) of the GDPR and the international data transfers in accordance with the provisions of Article 15.2 of the GDPR.

Again, the claiming party expresses their disagreement with the response and requests that their request be answered, to which the entity being claimed against responds by indicating "(...) having fulfilled its information obligations regarding the recipients of the personal data of the claimant, in accordance with the provisions of the GDPR and the LOPDGDD (...)"

“5.- Recipients or categories of recipients to whom your data is communicated.

Kutxabank, S.A. may communicate your data to the Entities and Organizations detailed below:

- Regulatory and supervisory authorities (e.g., Bank of Spain and European Central Bank).
- Group companies, and official authorities or organizations, including those from other countries, located within or outside the European Union, in the framework of the fight against the financing of terrorism and serious forms of organized crime and the prevention of money laundering.
- Risk Information Center of the Bank of Spain.
- Files related to the non-compliance with monetary obligations in the event of such non-compliance.
- Financial Holdings File.
- Information Exchange Service for Fraud Prevention.
- Courts and State Security Forces and Bodies.
- Auditing entities.
- Other entities that act as necessary collaborators in transactions, especially Prescribers, Real Estate Market Intermediaries, whether linked or not as real estate portals, Notaries, and Public Registries.
- As a general rule, your data will not be transferred to a third country or international organization established outside the European Economic Area. In the event that such international transfers occur, Kutxabank, S.A. will take the necessary measures to ensure that they are made to a country or organization that has provided adequate guarantees or that they can be based on the legitimizing principles established by law.”

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claiming party were satisfied.

C/ Jorge Juan, 6

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28001 – Madrid

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3/7

"This Agency points out that the access to data provided by the responding party does not include the identity of the data recipients in accordance with the doctrine established in the judgment of the Court of Justice of the European Union (CJEU) of January 12, 2023, case C-154/21."

Consequently, on January 26, 2023, for the purposes set forth in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing and informed the parties that the maximum period to resolve the present procedure, which is understood to have commenced with said admission agreement, will be six months.

The aforementioned agreement granted the responding entity a hearing procedure, so that within ten working days it could present the allegations it deemed appropriate. This entity stated, in summary, "(...) That, in accordance with the doctrine established in the recent judgment of the Court of Justice of the European Union (hereinafter, CJEU), of January 12, 2023, case C-154/21, Kutxabank points out that Article 15, paragraph 1, letter c), of the GDPR must be extended, when requested by the data subject, to the indication of the specific recipients of the communications concerning their personal data. However, this party wants to emphasize that the same judgment provides for an exception: '...it may be limited to the indication of the categories of recipients when it is materially impossible to identify the specific recipients of the communications concerning the personal data of the data subject or when the data controller demonstrates that the requests of the data subject are manifestly unfounded or excessive...'."

III. That the object of the request from the interested party is likely to negatively affect the rights and freedoms of third parties, as it expressly requires data relating to natural persons: "a detailed list of all entities, bodies, legal persons, natural persons, countries, or of any other kind, to whom my personal data has been sent. That is to say, I request the date, complete identification: with their full name, tax identification (NIF, CIF, Passport, etc.), the reason for the transfer of my data, and the complete address of the recipient of my data." In this regard, Kutxabank considers that it has acted accordingly, as established in the Guidelines 01/2022 on data subject rights - Right of Access of the European Data Protection Board.

IV. That the doctrine established in the judgment to which the AEPD refers in its writing pertains to a

resolution of the CJEU of January 12, 2023, case C-154/21, while the events related to the responses to the exercises of the right of access occurred on October 12, 13, and 24, 2022.”

Notwithstanding the above, within its technical, organizational, and technological capabilities, it has conducted an internal investigation procedure to identify the recipients of the data of the complaining party, and has sent them the identity of the data recipients in accordance with the doctrine established in the CJEU judgment of January 12, 2023, providing a copy of said communication.

FOURTH: After examining the allegations presented by the responding party, they are subject to transfer to the complaining party, so that, within fifteen working days,

C/ Jorge Juan, 6

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28001 – Madrid

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4/7

to formulate any allegations deemed appropriate, without any record of having received a response.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of the Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission for processing of the complaint that gives rise to this procedure, the complaint was forwarded to the responsible entity for analysis, requiring it to respond to this Agency within one month and to demonstrate that it had provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, as its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

C/ Jorge Juan, 6

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5/7

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision

regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to data portability are contemplated. The formal aspects related to the exercise of these rights are established in Article 12 of the GDPR and Article 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, in accordance with Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the controller provides remote access to the data, with the request being deemed fulfilled (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive on more than one occasion during a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

C/ Jorge Juan, 6
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28001 – Madrid
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6/7

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if that is the case, the right of access to the personal data."

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

FIFTH: The Judgment of the Court of Justice (First Chamber), of January 12, 2023, "Preliminary ruling — Protection of natural persons with regard to the processing of personal data — Regulation (EU) 2016/679 — Article 15, paragraph 1, letter c) — Right of access of the data subject to their data —

Information on the recipients or categories of recipients to whom the personal data have been or will be communicated — Limitations,"

"(...) declares:

Article 15, paragraph 1, letter c), of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation),

must be interpreted as meaning that

the right of access of the data subject to the personal data concerning them, established in that provision, implies, when those data have been or are to be communicated to recipients, the obligation of the data controller to provide that data subject with the identity of those recipients, unless it is not possible to identify them or unless the data controller demonstrates that the requests for access from the data subject are manifestly unfounded or excessive within the meaning of Article 12, paragraph 5, of Regulation 2016/679, in which case the data controller may only indicate to the data subject the categories of recipients concerned."

SIXTH: In the case analyzed here, from the examination of the documentation provided, it has been established that the claimant requested access to their data and a detailed list of the recipients of their data, and that the respondent provided them with full access to their data during the processing of this procedure.

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7/7

Regarding the respondent's assertion that the Judgment of the CJEU is subsequent to the exercise of the claimant's right, it should be noted that this judgment is the response to a preliminary question regarding the interpretation of Article 15, paragraph 1, letter c) of the GDPR, not a modification of the regulations governing that right, so the right has been fully addressed in an untimely manner.

Consequently, it is appropriate to uphold the present complaint on formal grounds.

In view of the cited provisions and others of general application, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO UPHOLD on formal grounds the complaint filed by Ms. A.A.A. against KUTXABANK, S.A. However, it is not appropriate to issue a new certification by said entity, as the response was issued untimely, and no additional actions are required from the data controller.

SECOND: TO NOTIFY this resolution to Ms. A.A.A. and to KUTXABANK, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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